

LAW & MOTION CALENDAR
TENTATIVE RULINGS

September 11, 2026

09:00 AM

CX-101

JUDGE WILLIAM D. CLASTER

Department CX101 Phone Number: (657) 622-5301

The Court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5301. The Court will not entertain a request for continuance nor filing of further documents once the ruling has been posted.

APPEARANCES: Appearances, whether remote or in person, must be in compliance with new Code of Civil Procedure §367.75, California Rules of Court, Rule 3.672, and Superior Court of California, County of Orange, Appearance Procedure and Information, Civil Unlimited and Complex, located at https://www.occourts.org/media-relations/covid/Civil_Unlimited_and_Complex_Appearance_Procedure_and_Information.pdf.

COURT REPORTERS: Official court reporters (i.e. court reporters employed by the Court) are **NOT** provided for any matters in this department. If a party desires a record of a law and motion proceeding, it will be the party’s responsibility to provide a court reporter. Parties must comply with the Court’s policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court’s website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.
- [Civil Limited, Unlimited and Complex \(Updated June 11, 2020\)](#)

#	CASE NAME	MATTER
4	Dunn vs. Suzuki Motor USA, LLC 2025-01477567	Plaintiff's Motion for Approval of Class Settlement The Court has reviewed the supplemental briefing filed in response to the previous minute order. The motion for preliminary approval of class action settlement is GRANTED. The motion for final approval shall be heard on February 19, 2027 at 9:00 a.m. in Department CX101. Moving papers are due 16 court days before the hearing. Please submit a revised proposed order that conforms to the foregoing, includes the date of the final approval hearing, and updates all dates that are calculated in reference to the date preliminary approval is granted.
5	Johnson vs. 1130 W. La Palma Ave, Inc. 2024-01436998	Plaintiff's Motion for Approval of Class Settlement Plaintiff’s motion for preliminary approval of class action settlement is CONTINUED to November 6, 2026 at 9:00 a.m. in Department CX101 to permit the parties to respond to the following items of concern. Any supplemental briefing shall be filed on or before October 26, 2026. If a revised settlement agreement and/or class notice is submitted, a redline showing all

	changes, deletions and additions must be submitted as well. <i>As to the Settlement:</i> 1. Are there any other pending actions, whether class, individual, or PAGA (including in the pre-filing LWDA stage) that may be affected by this settlement? 2. How large a sample of time and pay records did Defendant turn over (e.g., 10%)? 3. Was an expert retained to assist in valuing the case? If so, please provide a CV. 4. Did counsel interview any class members other than Plaintiff to value the non-record claims? 5. Did Defendant turn over copies of its meal and rest break policies? If so, were the written policies compliant with applicable law? 6. For the meal break claim, counsel refers to “Defendant’s contention that the claim lacked merit.” Why did Defendant contend the claim lacked merit? What did the evidence show? 7. What did the evidence show regarding the reimbursement claim? Were employees indeed required to use their vehicles or cell phones for work purposes without reimbursement? 8. Per § 5.1 of the agreement, Plaintiff will separately settle his individual claims, and the individual settlement is a material term of the class settlement. Please provide a copy of Plaintiff’s individual settlement. All agreements between the parties bear on the Court’s fairness analysis, and the individual settlement here is expressly a term of the class settlement. 9. At final approval, please submit contemporaneously made billing records for attorney’s fees and costs. The Court will not be inclined to award an amount of fees and costs greater than the amount stated in the notice. 10. At final approval, please submit billing records for administrative costs. The Court will not be inclined to award administrative costs in an amount greater than the amount stated in the notice. 11. Because he has provided a declaration in support of his requested enhancement payment, Plaintiff need not provide one at final approval. 12. At final approval, the administrator is to provide a high, low, and average for individual settlement payments, along with Plaintiff’s individual payout.
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		<i>As to the Notice:</i> 1. Please include both opt-out and workweek dispute forms with the notice. 2. Per point 6 on page 3 of the notice, “You are not a Class Member if you already have resolved the claims asserted in this lawsuit, whether by settlement or a separate legal proceeding (i.e., another lawsuit, settlement agreement, and or a valid and enforceable waiver).” The definition of the class in the settlement agreement has no such exclusions. Please explain this discrepancy. 3. Does notice need to be given in any languages other than English? 4. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 5. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
6	Senator vs. International Financial Solutions, LLC 2025-01480074	Plaintiff's Motion for Approval of Class Settlement There is no tentative ruling on Plaintiff’s motion for preliminary approval of class action settlement. The MOU which serves as the settlement agreement in this case does not include any provision for calculating the distribution of PAGA penalties to the affected aggrieved employees. Lacking such a provision and Defendant’s so-called “radio silence,” the Court questions whether there is authority allowing it to rewrite/add to the terms of the MOU. Also, the Court will need to review the individual settlement agreement incorporated into the MOU. Plaintiff and Defendant are ordered to appear (either in person or via Zoom) at the status conference and hearing on September 11, 2026 at 9:00 a.m. to discuss these issues, as well as Defendant’s apparent failure to cooperate in the settlement agreement process.
7	Stewart vs. Irv’s Burgers LLC 2025-01493662	Plaintiff's Motion for Approval of PAGA Settlement The Court has reviewed the supplemental briefing filed in response to the prior minute order. The motion for approval of the parties’ PAGA settlement is GRANTED. The Court finds the parties’ settlement is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 72.) The Court approves the following distributions:

		1. Attorneys’ fees in the amount of \$42,000, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by counsel, and the estimated lodestar. In approving this amount, the Court is not approving any particular hourly billing rates proposed by counsel. 2. Litigation costs in the amount of \$9,294, representing the full amount sought. 3. Administration costs in the amount of \$4,650, per the administrator’s revised bid. 4. An enhancement of \$5,000 to Plaintiff. In making this award, the Court has considered only the factors discussed in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. The amount remaining is to be distributed 65% to the LWDA and 35% to the aggrieved employees as required by PAGA. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
8	Rodriguez vs. CVS Pharmacy, Inc. 2026-01576349	Plaintiff’s Motion for Appointment of Counsel VACATED
9	Lusardi Construction Company vs. Causey 2025-01498620	Defendant's Motion for Order to Stay Proceedings Defendant MBO, Inc.’s motion to stay is GRANTED IN PART AND DENIED IN PART as set forth below. Specifically: 1. The motion is DENIED as to Lusardi’s seventh cause of action for declaratory relief regarding the duty to defend. 2. The motion is GRANTED as to Lusardi’s remaining claims. GROUNDSD FOR RULING I. Background In this construction defect matter, Lusardi entered into a prime contract with non-party S3 Hospitality, LLC (“Owner”) for the construction of a Hilton Garden Inn in Irvine. Lusardi, in turn, entered into subcontracts with Defendants here, including

	moving defendant MBO. Owner contends the construction of the hotel was defective. Pursuant to the dispute resolution terms of the prime contract between Owner and Lusardi, Owner filed a claim for arbitration with AAA, <i>S3 Hospitality LLC v. Lusardi Construction Company</i>, AAA No. 01-24-0008-2281 (“Arbitration”). Lusardi, in turn, filed counterclaims against Defendants in the Arbitration. But Defendants—with the exception of Horizon Heating & Air Conditioning—refused to participate in the Arbitration. They argued the terms of their subcontracts didn’t require their joinder. In response, Lusardi filed the present lawsuit. Lusardi also filed an R-7 motion in the Arbitration to compel Defendants’ joinder. The R-7 arbitrator denied Lusardi’s motion by written order on June 4, 2026. The arbitrator explained: “The subcontract language clearly requires arbitration in any dispute involving less than \$100,000, but expressly calls for any other disputes to be resolved by way of judicial action, except that if one of the parties initiates judicial action, the other party has the option of demanding arbitration of the dispute. In other words, if a subcontractor sues Lusardi, Lusardi could take the matter to arbitration; otherwise, the matter is to be resolved in a judicial action. That is the case here.” (Menjou Decl. (included in ROA 150) Ex. C, at p. 4.) As of July 2026, no arbitrator had yet been appointed for further proceedings in the Arbitration. (Menjou Decl. Ex. B, at p. 4.) II. <u>Discussion</u> Relying on CCP §§ 128, 1281.2, and 1281.4, as well as the Court’s inherent power, MBO moves for a stay of this matter until the Arbitration is resolved. A. <u>CCP §§ 1281.2, 1281.4</u> MBO first asks the Court to stay proceedings under the California Arbitration Act. This request is denied. CCP § 1281.2 allows a court to stay “the pending court action . . . pending the outcome of the arbitration proceeding.” But a court only has this power when acting “[o]n petition of a party to an arbitration agreement.” (<i>Ibid.</i>) No such petition has been filed here. Similarly, § 1281.4 allows a court to stay an action pending completion of arbitration, but only when that court “has ordered arbitration of a controversy.” No such order exists. While MBO’s arguments about the policy underlying these statutes has some appeal, policy arguments are not enough to overcome clear statutory language. B. <u>CCP § 128 and Inherent Power</u> Alternatively, MBO asks the Court to stay proceedings under CCP § 128 and the Court’s inherent power. “As the court in <i>Landis v. North American Co.</i> (1936) 299 U.S. 248, 254, 57 S.Ct. 163, 81 L.Ed. 153 explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (<i>OTO, L.L.C. v. Kho</i> (2019) 8
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	Cal.5th 111, 141.) 1. <u>Duty to Defend</u> MBO contends a stay is required to avoid the risk of inconsistent results. As to Lusardi’s claim for declaratory relief regarding the duty to defend, the Court disagrees. “[A]n indemnitor’s duty ‘to defend’ the indemnitee upon the latter’s request, places in every indemnity contract, unless the agreement provides otherwise, a duty to assume the indemnitee’s defense, if tendered, against all claims ‘embraced by the indemnity.’” (<i>Crawford v. Weather Shield Mfg., Inc.</i> (2008) 44 Cal.4th 541, 557.) “[T]he duty arises immediately upon a proper tender of defense by the indemnitee, and thus before the litigation to be defended has determined whether indemnity is actually owed. This duty, as described in the statute, therefore cannot depend on the outcome of that litigation. It follows that, under subdivision 4 of [Civ. Code] section 2778, claims ‘embraced by the indemnity,’ as to which the duty to defend is owed, include those which, at the time of tender, <i>allege</i> facts that would give rise to a duty of indemnity. Unless the indemnity agreement states otherwise, the statutorily described duty ‘to defend’ the indemnitee upon tender of the defense thus extends to all such claims.” (<i>Id.</i>, at p. 558.) MBO quotes from the indemnity and defense clause of the subcontract in its reply papers. It provides, in relevant part: “Subcontractor shall indemnify and hold the contractor . . . harmless from and against any claim . . . arising by reason of Subcontractor’s negligent act or omission Should any claim for such damages or injury . . . be made or asserted, Subcontractor agrees to and hereby does assume . . . the defense of any action at law or equity which may be brought against Contractor” (Reply (ROA 180) at p. 6, quoting FAC Ex. D.) For purposes of Defendants’ duty to defend Lusardi, the question is whether Owner has “made or asserted” a claim arising from Defendants’ negligence. Under <i>Crawford</i>, the duty to defend arises upon Lusardi’s tender of such a claim. Whether Defendants are ultimately found negligent is irrelevant to the analysis. What matters is what Owner’s claims allege. On this point, there is no risk of conflicting rulings between this action and the Arbitration. Either Owner’s claims arise from Defendants’ alleged negligence, or they do not. The Arbitration will not decide what Owner’s <i>allegations</i> are. The motion is therefore denied as to Lusardi’s seventh cause of action for declaratory relief regarding the duty to defend. 2. <u>Other Claims</u> Lusardi’s other claims are a different story. The first through fifth causes of action are claims for damages. Lusardi’s damages, if any, can’t be calculated until after the Arbitration concludes. The sixth and eighth causes of action seek declaratory relief regarding Defendant’s duty to indemnify. And while they aren’t claims for damages, they can’t be resolved until the Arbitration concludes. “One can only indemnify against ‘claims for damages’ that have
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		been resolved against the indemnitee, i.e., those as to which the indemnitee has actually sustained liability or paid damages.” (<i>Crawford, supra</i>, 44 Cal.4th at p. 509.) Moreover, there is a real risk of inconsistent rulings. For Lusardi to prevail on its indemnity claims, Defendants’ negligence must be the proximate cause of Owner’s damages. If this action weren’t stayed in favor of the arbitration, the arbitrator could find that Defendants’ negligence didn’t cause Owner’s damages, while this Court could simultaneously find Defendants’ negligence did. Such a result is to be avoided. However, Lusardi argues that the risk of inconsistent rulings can be avoided without a stay by postponing consideration of the merits of the indemnity claims until after the Arbitration concludes. The Court is inclined to agree, but believes consideration of the merits should be formally stayed rather than simply having a trial date pushed back. If a stay is informally accomplished by postponing the trial, there is a chance that summary judgment or adjudication rulings in this matter might conflict with rulings made in the Arbitration. Accordingly, the Court, in a discretionary exercise of its inherent authority, grants the motion as to Lusardi’s remaining claims. Lusardi argues that even if a stay on merits determinations is granted, the Court should allow discovery to proceed so as to avoid duplicative discovery taken in the arbitration proceeding. This request is denied. Allowing such discovery (often the most expensive aspect of any case) would effectively nullify one purpose of the stay—avoiding potentially unnecessary litigation expenses. If such discovery were allowed, MBO would be forced to participate in depositions and written discovery even if it later turns out that Lusardi succeeded in defending against the Owner’s claims. That said, if the Owner prevails in the Arbitration and the stay in this case is lifted, the Court expects the parties to work cooperatively on a discovery plan that allows discovery to proceed in an efficient manner, including what aspects of discovery taken in the Arbitration can be used in this litigation. Moreover, to the extent that discovery aimed at MBO is taken in the Arbitration, the Court expects the parties to cooperate regarding the use of that discovery in this litigation.
10	Legends Hospitality Wage and Hour Cases JCCP 5466	Motion for Coordination Scott Shuster, joined by Trinity Martinez and Demetrius Crook, petition for coordination of the following actions (“Included Actions”): 1. <i>Murchison v. MVP Productions, LLC</i>, Orange County Superior Court No. 21-01234789 2. <i>Martinez v. Legends Hospitality, LLC</i>, Orange County Superior Court No. 24-01380394 3. <i>Shuster v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 22STCV32193

	4. <i>Crook v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 23STCV24567 5. <i>Martinez v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 24STCV04068 6. <i>Lampkin v. Legends Hospitality, LLC</i>, Los Angeles County Superior Court No. 26STCV05689 (noted as an add-on action in subsequent filings) The petition is opposed by Domingo Murchison and Legends Hospitality, LLC. The parties’ requests for judicial notice are GRANTED. For the reasons set forth below, the petition for coordination is DENIED without prejudice. In the event the pending settlement in <i>Murchison</i> is not approved, then the Court will consider a renewed petition. Shuster’s request for a stay of proceedings pending coordination is DENIED AS MOOT. <u>GROUND FOR RULING</u> I. <u>Factual and Procedural Background</u> The Included Actions are a combination of class and PAGA actions involving non-exempt employees of Legends, a company that provides event hospitality services. The parties to <i>Murchison</i>, which is pending in this Court, previously reached a settlement. The plaintiffs in <i>Shuster</i> and <i>Martinez</i> attempted to intervene in <i>Murchison</i> to oppose that settlement. Their request was denied. However, the LWDA appeared in <i>Murchison</i> to object to the PAGA portion of the settlement. This Court denied preliminary approval of the original <i>Murchison</i> settlement without prejudice to the parties reaching a new agreement that addressed the Court’s concerns. A new settlement has been reached in <i>Murchison</i>. A motion for preliminary approval is on calendar for October 2, 2026. II. <u>Discussion</u> CCP § 404.1 provides: Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied. In their present posture, the Included Actions do not present common questions of law or fact. True, they involve overlapping employee groups and overlapping Labor Code violations. But all
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		that remains to be decided in <i>Murchison</i> is whether “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (<i>Kullar v. Foot Locker Retail, Inc.</i> (2008) 168 Cal.App.4th 116, 129.) The underlying Labor Code disputes will not be decided by the Court. Nor will the courts in the other Included Actions be asked to rule on the propriety of the <i>Murchison</i> settlement. Shuster contends coordination is necessary because it is unlikely the Court will approve the <i>Murchison</i> settlement. His petition catalogues various reasons he believes the settlement is improper. (Shuster Memo. at pp. 12-16.) These arguments are substantive objections to the settlement, not grounds for the procedural device of coordination. If the Court grants preliminary approval of the <i>Murchison</i> settlement, Shuster is free to raise them in objections, just like any other class member. In her response, Martinez suggests coordination is proper because “a global settlement [would be] difficult to manage without coordination.” (Martinez Resp. at p. 7.) But coordination does not mean the Included Actions are automatically consolidated for all purposes, such that Legends must reach a single global settlement with all named plaintiffs in the Included Actions. Even if coordination were granted, there is still a signed settlement agreement in <i>Murchison</i> that might result in the partial or total resolution of the Included Actions, regardless of whether the other plaintiffs are parties to that agreement. The coordination proponents also point out that if approval of the <i>Murchison</i> settlement is denied, all of the other cases will present duplicative discovery and overlapping legal and factual questions. Again, this appears true enough. But from the Court’s review of the docket in <i>Murchison</i>, no opposition to preliminary approval has been filed. At least on the current record, the possibility that approval will be denied outright is speculative. For these reasons, the petition for coordination is denied. Shuster’s request for a stay pending coordination is moot.
11	Nguyen vs. Hands on Bicycles, Inc. 2023-01343626	Defendant's Motion to Seal Defendant Hands On Bicycles, Inc.’s motion to seal is GRANTED. A court may order a record to be filed under seal only if it expressly finds facts establishing: 1. There exists an overriding interest that overcomes the right of public access to the record; 2. The overriding interest supports sealing the record; 3. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; 4. The proposed sealing is narrowly tailored; and 5. No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550(d).)

		At issue is the declaration of Defendant’s owner, Dave Hanson. The declaration was filed in response to the Court’s questions about how Defendant’s finances affected the settlement value. The general state of Defendant’s finances is known insofar as the public record reflects that the settlement was driven in large part by those finances. However, the material to be sealed includes specific financial information from profit and loss statements and the like. The Court finds Hanson’s declaration contains details of Defendant’s finances that are absent from the public record. The Court further finds these details implicate Defendant’s right to privacy in its financial affairs in a manner sufficient to support sealing the record. Should the record not be sealed, that overriding interest would be prejudiced, as the public would have access to detailed information about Defendant’s financial condition, in contrast to the general information already in the record. The sealing sought by Defendants is narrowly tailored. No means other than sealing will permit this private financial information to remain private. The motion is therefore granted.
12	Muhlhauser Steel, Inc. vs. 17422 Derian Irvine Apartments LLC 2025-01515505	Defendant’s Demurrer to Amended Complaint VACATED
13	Southern California Pizza Wage and Hour Cases JCCP 4725	Plaintiff's Motion for Leave to File Amended Complaint Defendant's Motion to Dismiss Defendant Southern California Pizza Company’s motion to dismiss the claims of Plaintiffs Kevin Deanda, Uriel Hernandez, and Carolina Huerta (through her successors-in-interest) GRANTED. Defendant’s unopposed request for judicial notice (ROA 1634) is GRANTED. Given this ruling, Huerta’s motion for leave to file a third amended complaint is DENIED. <u>GROUND</u>S FOR RULING I. <u>Brief Background</u> After nearly 14 years of litigation in this coordinated and consolidated proceeding, Plaintiffs’ consolidated claims remain. Following a series of class certification rulings, dispositive motion rulings, and trips to the Court of Appeal, most other named plaintiffs settled their claims on an individual basis. (Rene Najarro did not settle. The Court previously granted Defendant’s motion to dismiss Najarro’s claims. ROA 1611) As discussed in more detail below, Plaintiffs reached settlements in principle with Defendant, but the parties never executed formal settlement agreements. Defendant now moves to dismiss Plaintiffs’ claims for failure to bring them to trial within the time allowed by statute. II. <u>Discussion</u>

A. Governing Law

“An action shall be brought to trial within five years after the action is commenced against the defendant.” (CCP § 583.310.) “An action shall be dismissed by the court . . . on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article. (CCP § 583.360(a).) “The requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute.” (CCP § 583.360(b).) “While [application of the five-year rule] brings an end to [a] plaintiff’s suit, that is what the five-year statute is designed to do. The five-year rule is mandatory and dismissal for noncompliance is required.” (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1105.)

B. Effect of Settlements in Principle

Defendant contends the deadline to bring this case to trial was February 17, 2026. The Court previously agreed with Defendant’s analysis in the context of Najarro’s since-dismissed claims. (ROA 1611) Plaintiffs here do not challenge the specifics of Defendant’s calculations. Instead, they argue the time the case was settled in principle should be considered time in which “[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile.” (CCP § 583.340(c).) Such time is excluded from the five-year rule. (*Ibid.*)

1. Relevant Factual Background

a. Huerta

On January 8, 2026, Huerta reached a settlement in principle with Defendant. Defendant’s settlement offer, which Huerta’s counsel accepted on behalf of her successors, “contemplate[d] a standard long-form settlement agreement with a general release of all known and unknown claims and a standard confidentiality provision.” (Frei-Pearson Decl. (ROA 1653) Ex. 2.) The parties worked together to prepare a stipulation for Huerta’s successors to formally substitute into the case. The Court approved the stipulation on February 20, 2026. (ROA 1599.)

On March 6, 2026, the Court granted Defendant's motion to dismiss Plaintiff Najarro's claims pursuant to CCP § 583.310. Although counsel for Huerta, Deanda and Hernandez were not present at that hearing, they were served with notice of that ruling on March 10, 2026. (ROA 1614)

On March 9, 2026, defense counsel sent a draft settlement agreement to Huerta’s counsel. (Supp. Parvaresh Decl. (ROA 1673) Ex. C.) Defense counsel followed up by email on March 31. Huerta’s counsel responded that it might take a week to finalize the agreement. There was no further action until April 22, when defense counsel followed up a second time. (Supp. Pavaresh Decl. Ex. D.) Another week later, on April 29, Huerta’s counsel replied with two “substantive changes” to the settlement agreement. (Supp. Pavaresh Decl. Ex. E.) Relevant here, Huerta’s counsel sought to have the entire settlement amount treated as

	reimbursement for expenses rather than wages owed, meaning the proceeds would not be taxable. (<i>Ibid.</i>) This proposed change was unacceptable to Defendant, as Huerta’s claims included claims for unpaid wages. (Supp. Paravesh Decl. ¶ 6.) Defendant concluded the parties remained far apart on material terms of the settlement and decided to discontinue settlement discussions. (<i>Ibid.</i>) On May 6, the Court held a hearing on an OSC re: dismissal of settled case. Huerta’s counsel did not appear. At the hearing, defense counsel informed the Court that the time to bring Huerta’s claims to trial expired on February 17. Defendant asked the Court to dismiss her claims with prejudice. The Court told Defendant to file a noticed motion. On May 15, Defendant gave notice as ordered by the Court, with the notice emailed to Huerta’s counsel. (Supp. Paravesh Decl. Ex. 1.) On June 2, several weeks after receiving notice that Defendant had asked the Court to dismiss her claims with prejudice, Huerta’s counsel emailed defense counsel a signed settlement agreement. Defense counsel replied the same day, stating that Defendant intended to pursue dismissal as stated in the May 15 notice. (Frei-Pearson Decl. Ex. 6.) b. <u>Deanda and Hernandez</u> On January 12, 2026, Deanda and Hernandez reached a settlement in principle with Defendant. (Bitton Decl. (ROA 1646) ¶ 3.) The next day, Defendant filed a notice of settlement. (ROA 1556.) Per the notice, the parties “reached a settlement in principle” and were “finalizing the settlement agreements.” Plaintiffs would request dismissal of their claims with prejudice “after the settlement agreements ha[d] been executed by the respective Parties.” (<i>Ibid.</i>) On January 26, 2026, defense counsel sent Deanda and Hernandez’s counsel draft settlement agreements. (Bitton Decl. Ex. 4.) A month passed. On February 26, 2026, Deanda and Hernandez’s counsel replied with proposed changes. (Bitton Decl. Ex. 5.) On March 3, 2026, while Deanda and Hernandez’s counsel was traveling abroad, defense counsel replied with concerns about the payment timing and dispute resolution terms proposed by Deanda and Hernandez. (Bitton Decl. ¶ 9 & Ex. 6.) On March 6, a staff member at Deanda and Hernandez’s counsel’s sent signed W-9s to defense counsel. (Bitton Decl. Ex. 8.) Defense counsel replied to this staff member on March 9, following up on the concerns raised in the March 3 email. (Bitton Decl. Ex. 9.) Deanda and Hernandez’s counsel testifies that he attempted to reach Hernandez to discuss these issues, but Hernandez was unavailable for roughly three weeks. (Bitton Decl. ¶ 14.) In any event, on March 31, defense counsel sent a follow-up email to the staff member who had previously sent the W-9s. Unbeknownst to defense counsel, this staff member had left the firm; however, Deanda and Hernandez’s counsel was copied on the email, which he admits. (Bitton Decl. ¶ 15 & Ex. 10.) He does not testify that he made any effort to respond. Defense counsel,
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	still unaware of the staff member’s departure, followed up with a further email on April 22. (Bitton Decl. Ex. 11.) Another staff member promptly responded that the first staff member had left the firm and stated she would check on the matter. (Bitton Decl. Ex. 12.) Roughly two weeks passed with no word from Deanda and Hernandez’s counsel. On May 4, defense counsel reached out to the second staff member to follow up. (Bitton Decl. Ex. 13.) Again, Deanda and Hernandez’s counsel was copied on this email. (<i>Ibid.</i>) As discussed above in connection with Huerta, the Court held a hearing on May 6 on an OSC re: dismissal of settled case. Like Huerta’s counsel, Deanda and Hernandez’s counsel did not appear. The Court-ordered notice was also sent to Deanda and Hernandez’s counsel on May 15. (Supp. Paravesh Decl. Ex. I.) On June 11, nearly a month after receiving notice that Defendant had asked the Court to dismiss their claims with prejudice, Deanda and Hernandez’s counsel asked defense counsel to forward a revised agreement, addressing the concerns raised back in March, for his clients’ signatures. (Bitton Decl. Ex. 15.) On June 27, Deanda and Hernandez’s counsel followed up about the status of the final agreement. (Bitton Decl. Ex. 16.) On June 29, defense counsel replied that, as stated in the May 15 notice, it had decided to move forward with dismissal. (Bitton Decl. Ex. 17.) Despite having received notice of what happened at the May 6 hearing, Deanda and Hernandez’s counsel claims he was never informed that Defendant “would be abandoning the settlement.” (Bitton Decl. ¶ 25.) 2. <u>Analysis</u> As the documents attached to the parties’ supporting declarations make clear, the parties reached settlements <i>in principle</i>. When parties have “a settlement ‘in principle,’” it means “they ha[ve] yet to fix its exact terms.” (<i>Levitz v. The Warlocks</i> (2007) 148 Cal.App.4th 531, 534-535.) A settlement in principle “is not a settlement at all.” (<i>Id.</i>, at p. 535.) Upon receipt of draft settlement agreements from Defendant, Huerta’s counsel and Deanda and Hernandez’s counsel both provided substantive suggested revisions to material terms of the agreement. The parties may have agreed on the settlement amounts, but this isn’t the same as agreeing on the exact terms of the settlement agreements. Plaintiffs cite a handful of cases holding a settlement can make going to trial impossible, impracticable, or futile. But in all these cases, the settlement was binding, either because it was reduced to a signed agreement (<i>Schiro v. Curci</i> (1990) 220 Cal.App.3d 840; <i>Brown & Bryant, Inc. v. Hartford Accident & Indemnity Co.</i> (1994) 24 Cal.App.4th 247; <i>Seto v. Szeto</i> (2022) 86 Cal.App.5th 76), or because its terms were recited on the record in open court (<i>Gorman v. Holte</i> (1985) 164 Cal.App.3d 984; <i>Canal Street, Ltd. v. Sorich</i> (2000) 77 Cal.App.4th 602.) Here, there was a settlement in principle, which is not a settlement at all. Because there was no settlement, the time the case had settled in
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	principle is not excluded from the time in which the case had to be brought to trial. Accordingly, Plaintiffs’ claims must be dismissed. C. <u>CCP Section 583.350</u> In a last-ditch effort to salvage their case, Plaintiffs cite CCP § 583.350 which provides a six-month window to bring a case to trial once a tolling period ends. Here, the tolling period ended on February 24, 2025 (ROA 1611), far more than six months ago. Because the Court concludes that the 2026 announcements of settlements in principle did not further toll the 5-year statute, § 583.350 is inapplicable. D. <u>Equitable Estoppel</u> Alternatively, Plaintiffs argue Defendant should be equitably estopped from invoking the five-year rule because (1) it repeatedly followed up about the status of the settlement agreement without mentioning the deadline for bringing the case to trial, which had already passed, and (2) it represented to the Court that the parties had reached settlements. “Equitable estoppel requires that: (1) the party to be estopped was aware of the operative facts and either intended that its act or omission be acted upon, or acted in such a way that the party asserting estoppel rightfully believed it was intended; and (2) the party asserting estoppel was unaware of the facts and relied on the other party's conduct to its detriment. [Citation.] The party asserting estoppel has the burden to establish these elements.” (<i>Gaines v. Fidelity National Title Ins. Co.</i> (2016) 62 Cal.4th 1081, 1097.) <i>Gaines</i> is instructive. There, the parties agreed to a partial stay of the action for 120 days to allow for mediation. The case failed to settle. It was eventually dismissed under the five-year rule. The plaintiff argued the 120-day stay shouldn’t have counted against the time to bring the case to trial. The California Supreme Court disagreed. Alternatively, the plaintiff argued the defendant should have been estopped from claiming the deadline wasn’t tolled for 120 days. Again, the California Supreme Court disagreed. It explained: “The parties' communications regarding the stay explicitly set forth their expectations. Nowhere did those communications reflect an understanding that the five-year statute would be tolled.” (<i>Id.</i>, at p. 1098.) So too here. As Deanda and Hernandez admit, “Not one of these communications mentioned the five-year deadline, suggested that time was running short, or indicated that Defendant viewed the matter as anything other than a settled case awaiting execution.” (Deanda and Hernandez Opp. at p. 8.) Defendant never affirmatively misled Plaintiffs about the five-year deadline. At most, it omitted to inform Plaintiffs about the five-year deadline. But Defendant had no duty to inform Plaintiffs of the deadline. To the contrary, Plaintiffs bore the burden of ensuring the case was brought to trial in a timely fashion: “The burden is upon the plaintiff to call to the attention of the court the
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		necessity for setting the trial for a time within the period fixed by section 583. This rule is well founded: the burden of keeping track of the relevant dates should properly fall on plaintiffs, because it is they who have the interest, and the statutory duty under section 583.310, to timely prosecute their cases.” (<i>Howard v. Thrifty Drug & Discount Stores</i> (1995) 10 Cal.4th 424, 434 (internal quotations omitted).) Defendant’s silence doesn’t absolve Plaintiffs of their duty to ensure their claims are timely tried. Moreover, the facts don’t support Plaintiff’s seeking equitable relief for another reason. For about two months after the dismissal of Najarro’s case, Defendant apparently was willing to honor the settlements in principle even though the five-year deadline had expired on February 17, 2026, and even though the Court already had dismissed Najarro’s case on the same basis. Plaintiffs’ counsel was on notice of that dismissal yet took no steps to protect their clients’ positions. The lack of action in the face of that notice undercuts any request for equitable relief. III. <u>Conclusion</u> For these reasons, Defendant’s motion is granted. Huerta, Deanda and Hernandez’s claims are dismissed with prejudice. As such, Huerta’s motion for leave to file a third amended complaint is denied.
14	Roe 26 A.B. vs. Anaheim Union High School District 2025-01503960	Gizem Gures's Motion to Be Relieved as Counsel of Record Slater, Slater & Schulman LLP moves to be relieved as counsel for Plaintiff John Roe 34 R.P. The motion is GRANTED. Counsel has met the requirements of CCP § 284 and CRC 3.1362. The order will be effective upon the filing of proof of service on the client.
15	William Thompson, derivatively on Behalf of The Ensign Group, Inc., vs. Keetch 2026-01584212	Motion for James W. Ducayet to Appear Pro Hac Vice The unopposed application of James W. Ducayet for admission pro hac vice is GRANTED. The moving papers comply with the requirements of CRC 9.40.
16	Vidal vs. The Winery LP 2025-01456888	Motion for Sammy Y. Sugiura to Appear Pro Hac Vice The unopposed application of Sammy Y. Sugiura for admission pro hac vice is DENIED WITHOUT PREJUDICE. The moving papers contain no proof that Sugiura has paid the application fee required by CRC 9.40(e). Paragraph 8 of Sugiura’s declaration says payment “will be” made, but there is no proof payment was in fact made to the State Bar.